STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

# DRIVING UNDER THE INFLUENCE ARREST – INVESTIGATION REPORT

CHP 202 (Rev. 2-24) OPI 066

☒ Misdemeanor ☐ Felony ☐ Domestic Violence (Refer to HPM 100.69)



| COURT | FILE NUMBER | EVIDENCE/PROPERTY |
|---|---|---|
| East County Hall of Justice | 202400898 | ☐ YES ☒ NO E- |

| AREA | BEAT | CRASH REPORT NUMBER |
|---|---|---|
| 390 | 052 | N/A |

| DATE/TIME OF ARREST/REPORT | DATE/TIME OF INCIDENT ☐ SAME | LOCATION OF ARREST/INCIDENT | WMVARS/MVARS |
|---|---|---|---|
| 11/01/2024 0112 | 11/01/2024 0055 | I-580 eastbound, west of Isabel Avenue | WMVARS ☒ YES ☐ NO |

| CAD NUMBER ☐ NONE | CITATION NUMBER | OFFENSE(S) CHARGED OR INVESTIGATED | JUS 8715 REQUIRED |
|---|---|---|---|
| 241101GG0064 | RJ68845 | 23152(a) VC, 23152(b) VC | ☒ YES ☐ NO NUMBER: |

LAST NAME, FIRST NAME, AND MIDDLE INITIAL: Newanforbi, Brendan, Ngehsi

## SUBJECT NO 1 OF 1

| NAME (last, first, middle) | RESIDENCE ADDRESS |
|---|---|
| Newanforbi, Brendan, Ngehsi | 1455 Cat Tail Drive Stockton CA, 95204 |

| AKA | HOME PHONE | MAILING ADDRESS |
|---|---|---|
| Not asked | Not asked | ☒ SAME |

| RACE | ETHNICITY | SEX | BIRTHDATE | DISPATCH NOTIFIED |
|---|---|---|---|---|
| Black or African American | Not Hispanic or Latino | Male | 09/16/1996 | ☒ YES ☐ NO |

| DRIVER LICENSE NUMBER | STATE | DDL STATUS | HAIR | EYES | HEIGHT | WEIGHT | PLACE OF BIRTH (city, state, country) |
|---|---|---|---|---|---|---|---|
| F7953179 | CA | Valid | BLK | BRN | 508 | 225 | Camaroon |

| EMPLOYER | BUSINESS PHONE | BUSINESS ADDRESS | MISC. (SSN, INS #, ETC.) |
|---|---|---|---|
| Self employed | Not asked | Not asked | Not asked |

TIME: 0326
ID: A13903

| BOOKING, CII, FBI, ETC., NUMBER(S) | WHERE BOOKED/CONFINED | DATE/TIME | FINGERPRINTED |
|---|---|---|---|
| CAR913358 | Santa Rita Jail | 11/01/2024 0325 | ☒ YES ☐ NO |

NOTIFICATION (*Who, How, When*), EXPLAIN IN NARRATIVE
☐ JUVENILE ☐ FOREIGN NATIONAL ☐ IMMUNITY CLAIM

NOTIFIED BY

## VEHICLE

| LICENSE | STATE | REG. YEAR | VIN/EN NUMBER | VEHICLE WAS | STORAGE AUTHORITY |
|---|---|---|---|---|---|
| 9EAX768 | CA | 2025 | 7SAYGDEE3PF638736 | ☐ PARKED ☐ RELEASED ☒ STORED ☐ RECOVERED ☐ IMPOUNDED | 22651(h)(1) VC |

| VEH YEAR | MAKE | MODEL | COLOR | BODY TYPE | LOCATION OF VEHICLE/RELEASED TO/ADDRESS/TELEPHONE NUMBER |
|---|---|---|---|---|---|
| 2023 | Tesla | Model Y | Gray | SUV | United Towing - (925) 888-8880 |

| NAME OF REGISTERED OWNER ☐ SAME AS SUBJECT | ADDRESS ☐ SAME AS SUBJECT |
|---|---|
| PV Holding Corp. | 5721 W. 96th Street Los Angeles CA, 90045 |

| NAME OF LEGAL OWNER ☐ SAME AS R/O | ADDRESS | LOCATION OF KEYS |
|---|---|---|
| The bank of New York Mellow Trust Company | 26933 Northwestern Hwy Southfield MI, 48033 | With tow |

## WITNESS/PASSENGER/VICTIM

| BIRTHDATE | SEX | NAME | ADDRESS/AGENCY | PHONE |
|---|---|---|---|---|
| | M | ☒ WITNESS ☐ PASSENGER ☐ VICTIM Officer Melano ID 023054 | 4999 Gleason Drive Dublin CA, 94568 | RES: N/A BUS: (925) 828-0466 |
| | | ☐ WITNESS ☐ PASSENGER ☐ VICTIM | | RES: BUS: |
| | | ☐ WITNESS ☐ PASSENGER ☐ VICTIM | | RES: BUS: |
| | | ☐ WITNESS ☐ PASSENGER ☐ VICTIM | | RES: BUS: |

## ADMONITION OF RIGHTS

1. YOU HAVE THE RIGHT TO REMAIN SILENT.
2. ANYTHING YOU SAY CAN AND WILL BE USED AGAINST YOU IN A COURT OF LAW.
3. YOU HAVE THE RIGHT TO TALK WITH AN ATTORNEY AND TO HAVE AN ATTORNEY PRESENT BEFORE AND DURING QUESTIONING.
4. IF YOU CANNOT AFFORD AN ATTORNEY, ONE WILL BE APPOINTED FREE OF CHARGE TO REPRESENT YOU BEFORE AND DURING QUESTIONING, IF YOU DESIRE.

THE ABOVE STATEMENT WAS READ TO THE ARRESTEE BY:

☒ NOT ADVISED ☐ ARRESTING OFFICER ☐ OR: ID: TIME:

| DO YOU UNDERSTAND EACH OF THESE RIGHTS I HAVE EXPLAINED TO YOU? | HAVING THESE RIGHTS IN MIND, DO YOU WISH TO TALK TO US NOW? | WAIVER STATEMENT |
|---|---|---|
| ☐ YES ☐ NO | ☐ YES ☐ NO | |

**MISDEMEANOR INCARCERATION** (To be completed upon physical arrest for any misdemeanor, pursuant to Section 853.6 of the Penal Code.)
As determined by the arresting officer, the person arrested:

1. ☐ was so intoxicated as to be a danger to themself or others.
2. ☐ required medical examination or medical care or was otherwise unable to care for their own safety.
3. ☒ was arrested under one or more of the circumstances listed in Sections 40302 and 40303 of the California Vehicle Code (Note 5 and 8 if also applicable).
4. ☐ had one or more outstanding arrest warrants issued.
5. ☐ could not provide satisfactory evidence of personal identification.
6. ☒ if released immediately, would jeopardize the prosecution of the offense or offenses for which arrested or the prosecution of any other offenses.
7. ☒ would be reasonably likely to continue the offense or offenses, or the safety of persons or property would be imminently endangered if immediately released.
8. ☐ demanded to be taken before a magistrate or refused to sign the citation.
9. ☐ would not appear at the time and place specified in the notice.
10. ☐ Other:

| ARRESTING/INVESTIGATING OFFICER (*Print name/rank*) | ID NUMBER | REVIEWED BY (*Print name/rank*) | ID NUMBER | DATE |
|---|---|---|---|---|
| Meza / Officer | 023295 | SG. DEAL | 17747 | 11/5/24 |

**Newanforbi, Brendan, Ngehsi** | **RJ68845**

* Asked prior to FSTs

## INVESTIGATION INTERVIEW

| | | | |
|---|---|---|---|
| DO YOU KNOW OF ANYTHING MECHANICALLY WRONG WITH YOUR VEHICLE ? DESCRIBE. ☐ YES ☒ NO | | ARE YOU SICK OR INJURED? DESCRIBE. ☒ YES ☐ NO<br>Pre-Diabetic | |
| ARE YOU DIABETIC OR EPILEPTIC? ☒ YES ☐ NO | DO YOU TAKE INSULIN? *(Pills/Injection)* ☐ YES ☒ NO | DO YOU HAVE ANY PHYSICAL IMPAIRMENTS? DESCRIBE. *(Feet, Legs, Ankles, or Hips)* ☐ YES ☒ NO | |
| WHEN DID YOU LAST SLEEP?<br>Right now | HOW LONG? 7 Minutes / WHEN DID YOU LAST EAT? 11:30 PM | DESCRIBE<br>Hot dog | |
| WERE YOU DRIVING THE VEHICLE? ☒ YES ☐ NO ☐ N/A | IF NO, WHO? | WHERE DID YOU START DRIVING?<br>Oakland | WHERE WERE YOU GOING?<br>Stockton |
| WHERE WERE YOU STOPPED?<br>Livermore | WHAT HAVE YOU BEEN DRINKING?<br>Nothing | HOW MUCH?<br>Not asked | TIME STARTED?<br>Not asked / TIME STOPPED?<br>Not asked |
| LOCATION WHERE YOU WERE DRINKING? NAME/ADDRESS<br>Not asked | | DO YOU FEEL THE EFFECTS OF THE DRINKS? DESCRIBE.<br>Not asked | ☐ YES ☐ NO |
| DID YOU BUMP YOUR HEAD? ☐ YES ☒ NO ☐ N/A | HAVE YOU BEEN DRINKING SINCE THE ACCIDENT? ☐ YES ☐ NO ☒ N/A | IF YES, WHAT? | HOW MUCH? |
| ARE YOU UNDER CARE OF A DOCTOR OR DENTIST? ☐ YES ☒ NO | IF YES, NAME/ADDRESS | | RECENT SURGERY PERFORMED? ☐ YES ☒ NO *(Explain In Narrative)* |
| HAVE YOU TAKEN ANY MEDICINE OR DRUGS? ☐ YES ☒ NO | IF YES, WHAT? | HOW MUCH? / TIME OF LAST DOSAGE? | |

DO YOU FEEL THE EFFECTS OF THE MEDICINE/DRUGS? DESCRIBE. ☐ YES ☒ NO

## OBJECTIVE SIGNS/APPEARANCE/FIELD SOBRIETY TEST LOCATION

| BREATH ODOR OF ALCOHOLIC BEVERAGE PRESENT: | GLASSES/LENSES | EYES (appearance) | DEMEANOR | SPEECH |
|---|---|---|---|---|
| Strong ☒ YES ☐ NO | ☐ YES ☒ NO | Red and watery | Compliant | Slurred |

CLOTHING WORN: CONDITION AND DESCRIPTION

Worn condition: Black shirt, green pants, and black slides

DESCRIBE TEST LOCATION, SURFACE, WEATHER, AND LIGHTING

Dirt shoulder: Clear, cool, and dry with patrol vehicle lights and flashlight

## PRELIMINARY ALCOHOL SCREEN INFORMATION

**P.A.S. Admonition: I am requesting that you take a preliminary alcohol screening test to further assist me in determining whether you are under the influence of alcohol. You may refuse to take this test; however, this is not an implied consent test and, if arrested, you will be required to give a sample of your blood, breath, or urine for the purpose of determining the actual alcoholic and drug content of your blood.**

THE SUBJECT WAS ADVISED OF THE ABOVE STATEMENT BY:

☐ NOT ADVISED ☒ ARRESTING OFFICER ☐ OR ID: TIME: 0111

| PAS SERIAL NUMBER | TEMPERATURE | ZEROED | RESULTS NO. 1 | TIME 1 | RESULTS NO. 2 | TIME 2 | RESULTS NO. 3 *(If needed)* | TIME 3 |
|---|---|---|---|---|---|---|---|---|
| | | ☐ YES ☐ NO | ☒ Refused | | | | | |

| LOCATION OF TEST | BREATH SAMPLE | OFFICER ADMINISTERING PAS TEST | ID NUMBER | AREA |
|---|---|---|---|---|
| ☐ At scene | ☐ Automatic ☐ Manual | ☐ ARRESTING OFFICER ☐ OR | | |

## CHEMICAL TEST INFORMATION

| | | |
|---|---|---|
| ☒ Implied Consent Admonishment, Section 23612 CVC<br>☒ Refused Test(s) (Complete DS 367) | DRUG ADMONISHMENT ☒ N/A<br>☐ Yes ☐ Refused (Complete DS 367) | ATTACHMENTS ☐ CHP 202 DRE ☐ OTHER |

| TYPE OF TEST | TIME | ID OF SAMPLE(S) | RESULTS, IF AVAILABLE | DISPOSITION OF SAMPLE(S) |
|---|---|---|---|---|
| 1 ☐ Breath | | | | |
| 2 ☒ Blood | 0238 | RJ68845 | Pending | CHP Dublin Area Blood Evidence Locker |
| 3 ☐ Urine | | | | |

| TEST GIVEN | LOCATION WHERE TEST WAS CONDUCTED | NAME AND TITLE OF PERSON GIVING TEST OR TAKING SAMPLE |
|---|---|---|
| 1 | | ☐ ARRESTING OFFICER ☐ OR |
| 2 | CHP Dublin Area Office | ☐ ARRESTING OFFICER ☒ OR Phlebotomist Aziza Ghaleb |
| 3 | | ☐ ARRESTING OFFICER ☐ OR |

## CHEMICAL TEST ADVISEMENT

A. The breath testing equipment does NOT retain any breath sample for later analysis by you or anyone else.
B. If you want a sample retained, you may provide a blood or urine sample that will be retained at no cost to you. If you do so, the blood or urine sample may be tested for alcoholic or drug content by either party in a criminal prosecution.
C. Do you wish to provide an additional sample? ☐ YES ☐ NO ☒ N/A

## WATSON ADVISEMENT

You are hereby advised that being under the influence of alcohol or drugs, or both, impairs your ability to safely operate a motor vehicle. Therefore, it is extremely dangerous to human life to drive while under the influence of alcohol or drugs, or both. If you continue to drive while under the influence of alcohol or drugs, or both, and, as a result of that driving, someone is killed, you can be charged with murder.

DO YOU UNDERSTAND ☒ YES ☐ NO _____ READ VERBATIM: ☒ YES ☐ NO ☐ DID NOT ADVISE (Explain in narrative)

☒ ARRESTING OFFICER ☐ OR _____ ID: _____ ☐ N/A

**FIELD SOBRIETY TESTS:**

*All FSTs were explained and demonstrated in English by myself. Newanforbi stated he understood each test prior to performing each test. Newanforbi was asked and answered a series of FST questions prior to performing the FSTs. Notes were taken on 3x5 notepad, transferred to the report, and thrown out upon completion of the report. All times throughout this report were taken by my Iphone, unless otherwise stated.

**Horizontal Gaze Nystagmus:** Newanforbi displayed the following in both his eyes: Equal pupils, equal tracking, lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and the onset of nystagmus prior to 45 degrees. Newanforbi also displayed lack of convergence.

**Modified Romberg Balance:** Newanforbi estimated the passage of 30 seconds to be an actual 43 seconds. Newanforbi displayed eyelid flutters.

**One Leg Stand:** Newanforbi chose not to perform this test and related it was difficult.

**Walk and Turn:** Newanforbi chose not to perform this test and related it was difficult.

**Preliminary Alcohol Screening Device (PAS):** I advised Newanforbi of the PAS admonishment and he refused to take the test.

**FIRST OBSERVATIONS:**

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist.

**OBSERVATIONS UPON CONTACT:**

I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was in a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I directed the male to exit the Tesla and walk to the right front of my patrol vehicle where I conducted a DUI evaluation. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Newanforbi a series of field sobriety test questions and while speaking with Newanforbi, I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person. I explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated.

**ARREST:**

Based on the following, I formed the opinion that Newanforbi drove to this location while under the influence of alcohol, a violation of California Vehicle Code 23152(a) per 40300.5 VC:

1. Newanforbi displayed objective signs and symptoms of intoxication.
2. Newanforbi stated that he had driven the vehicle to this location.
3. The driver's seat was adjusted to that of a person of Newanforbi's stature.
4. Newanforbi's answers to the Pre-FST questions.
5. Newanforbi's poor performance on the FST's.
6. Newanforbi related he did not have any alcoholic beverages since he stopped on the shoulder.

**ARREST (Continued):**

At 0112 hours, I placed Newanforbi under arrest for a violation of California Vehicle Code section 23152 (a), driving while under the influence of alcohol, per 40300.5 VC.

I placed Newanforbi in handcuffs, they were then adjusted to proper fit and double locked. Newanforbi was then placed in the right rear passenger seat of my patrol vehicle. During this investigation a Department of Motor Vehicles (DMV) driving history for Newanforbi was requested through the GGCC. The GGCC advised his license status was valid and was on parole for 289(a)(1) PC. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Newanforbi chose to refuse any chemical testing. Newanforbi was then transported to the CHP Dublin Area Office, where I wrote an affidavit for Newanforbi's blood. Judge A. Sekany approved the affidavit at approximately 0234 hours (WAR913372). At approximately 0238 hours, I received two vials of blood from Newanforbi's right arm by phlebotomist Aziza Ghaleb. The blood sample was sealed and secured in the CHP Dublin Area Blood Evidence locker for analysis by the Department of Justice. Newanforbi was then transported to Santa Rita jail, where he was booked at approximately 0325 hours for 23152(a) VC.

**RECOMMENDATIONS:**

I recommend that a copy of this report be forwarded to the Alameda County District Attorney's office for the review of the following charges against Brendan Ngehsi Newanforbi:

- 23152(a) VC - DUI Alcohol
- 23152(b) VC - .08% BAC or above (Pending Results)

Upon successful prosecution of the above charges, I recommend the following enhancements be charged against Newanforbi:

- 23578 VC - Chemical Test Refusal